

CV-25-006234 RAZO, JUANA vs SAVE MART SUPERMARKETS LLC – a) Plaintiff Juana Razo's Motion to Compel Defendant Save Mart Supermarkets LLC DBA Foodmaxx to Provide Further Responses to Form Interrogatories (Set Two) No. 17.1 and for Monetary Sanctions in the Amount of \$2,500.00- CONTINUED, on the Court's own motion. b) Plaintiff Juana Razo's Motion to Compel Defendant Save Mart Supermarkets LLC DBA Foodmaxx to Provide Further Responses to Special Interrogatories (Set Two) and for Monetary Sanctions in the Amount of \$2,500.00 - CONTINUED, on the Court's own motion. c) Plaintiff Juana Razo's Motion to Compel Defendant Save Mart Supermarkets LLC DBA Foodmaxx to Provide Further Responses to Requests for Admission (Set Two) and for Monetary Sanctions in the Amount of \$2,500.00 - CONTINUED, on the Court's own motion.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: a) The Court notes Defendant's claims of Plaintiff's failure to meet and confer in good faith as well as Defendant's multiple expressions of a desire to avoid motion practice and court intervention in correspondence between Counsel attached as Exhibits in support of the motion. Therefore, the Court is of the view that the parties would benefit from further meet and confer. Accordingly, parties are hereby ordered to engage in further meet and confer "either in person, by telephone or by videoconference" to address and or narrow down the issues in dispute, bearing in mind that parties have a broad right to discovery, and that discovery is supposed to be self-executing. ((Civ. Proc. Code §§ 2016.040; 2017.010).Furthermore, argument is not the same as informal negotiation, and a reasonable and good faith attempt at informal resolution entails something more than bickering with opposing counsel; rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate. (Clement v. Alegre (2009) 177 Cal. App. 4th 1277). This matter is therefore continued to July 24, 2026, at 8:30 am in Department 24 of this Court. No later than July 16, 2026, the parties shall file a joint status statement, or separate statements not exceeding five (5) pages if a joint statement cannot be prepared, advising the Court whether the discovery disputes have been resolved or narrowed and identifying any issues that remain for adjudication. b) The Court notes Defendant's claims of Plaintiff's failure to meet and confer in good faith as well as Defendant's multiple expressions of a desire to avoid motion practice and court intervention in correspondence between Counsel attached as Exhibits in support of the motion. Therefore, the Court is of the view that the parties would benefit from further meet and confer. Accordingly, parties are hereby ordered to engage in further meet and confer "either in person, by telephone or by videoconference" to address and or narrow down the issues in dispute, bearing in mind that parties have a broad right to discovery, and that discovery is supposed to be self-executing. ((Civ. Proc. Code §§ 2016.040; 2017.010).Furthermore, argument is not the same as informal negotiation, and a reasonable and good faith attempt at informal resolution entails something more than bickering with opposing counsel; rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate. (Clement v. Alegre (2009) 177 Cal. App. 4th 1277). This matter is therefore continued to July 24, 2026, at 8:30 am in Department 24 of this Court. No later than July 16, 2026, the parties shall file a joint status statement, or separate statements not exceeding five (5) pages if a joint statement cannot be prepared, advising the Court whether the discovery disputes have been resolved or narrowed and identifying any issues that remain for adjudication. c) The Court notes Defendant's claims of Plaintiff's failure to meet and confer in good faith as well as Defendant's multiple expressions of a desire to avoid motion practice and court intervention in correspondence between Counsel attached as Exhibits in support of the motion. Therefore, the Court is of the view that the parties would benefit from further meet and confer. Accordingly, parties are hereby ordered to engage in further meet and confer "either in person, by telephone or by videoconference" to address and or narrow down the issues in dispute, bearing in mind that parties have a broad right to discovery, and that discovery is supposed to be self-executing. ((Civ. Proc. Code §§ 2016.040; 2017.010).Furthermore, argument is not the same as informal negotiation, and a reasonable and good faith attempt at informal resolution entails something more than bickering with opposing counsel; rather, the law requires that

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